

Ravindra Nath Pandey v. State of U.P.

Allahabad High Court · Division Bench · 8 December 2016 · Writ-C No. 58150 of 2016 · Writ-C No. 58150 of 2016 ·
Writ disposed of; EE to decide the 6.5 objection in four weeks.

HEADNOTE

A pending consumer objection to an electricity bill is to be treated as an application under Section 6.5 of the Electricity Supply Code, 2005 and decided by the Executive Engineer by a reasoned and speaking order. The writ court will not itself correct the bill. The petition was disposed of with a four-week direction.

FACTUAL SUMMARY

The petitioner, Ravindra Nath Pandey, approached the Allahabad High Court in a writ petition against the State of Uttar Pradesh and others. He contended that he had raised an objection against an electricity bill dated 30 November 2014 and that the objection had remained pending for a long time. Counsel submitted that the bill-correction request had not been decided. The petitioner sought a writ directing consideration of that pending objection to the 2014 bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed-bills

HOLDING

Correction of an electricity bill is required to be done under Section 6.5 of the Electricity Supply Code, 2005. A pending consumer objection to a bill is to be treated as an application under that provision and decided by the Executive Engineer by a reasoned and speaking order; the writ court will not itself correct the bill. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A pending consumer objection to an electricity bill is to be treated as an application under Section 6.5 of the Electricity Supply Code, 2005 and decided by the Executive Engineer by a reasoned and speaking order. The writ court will not itself correct the bill. The petition was disposed of with a four-week direction. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL DATED 30 NOVEMBER 2014

The writ court did not examine the billed amount and remitted the objection to the Executive Engineer under Section 6.5. ¶ 1